

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #15	CCRB Case #: 201709192	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/04/2017 5:30 PM	Location of Incident: East 166th Street and Morris Avenue	18 Mo. SOL 5/4/2019	Precinct: 44		
Date/Time CV Reported Mon, 11/06/2017 3:30 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 11/06/2017 3:30 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jacqueline Becker	24265	959486	044 PCT
2. POM Vincent Ritell	22044	955378	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Vincent Ritell	Abuse: Police Officer Vincent Ritell stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker frisked Unknown § 87(2)(b)	C . Unfounded
D . POM Vincent Ritell	Abuse: Police Officer Vincent Ritell frisked § 87(2)(b)	D . Exonerated
E . POM Vincent Ritell	Abuse: Police Officer Vincent Ritell searched § 87(2)(b)	E . Unsubstantiated
F . POF Jacqueline Becker	Abuse: Police Office Jacqueline Becker frisked § 87(2)(b)	F . Exonerated
G . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker searched § 87(2)(b)	G . Exonerated
H . POF Jacqueline Becker	Abuse: Police Officer Jacqueline Becker searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 6, 2017, § 87(2)(b) filed this complaint in-person at the CCRB.

On November 4, 2017, PO Jacqueline Becker and PO Vincent Ritell were travelling in the vicinity of East 166th Street and Morris Avenue in the Bronx when they observed a vehicle—occupied by § 87(2)(b) and § 87(2)(b)—make an illegal U-turn. PO Ritell and PO Becker then stopped the vehicle (**Allegations A and B: Abuse of Authority**—§ 87(2)(g)). While the officers were interacting with § 87(2)(b) and § 87(2)(b) in the vehicle, § 87(2)(b)'s mother, identified by the investigation as § 87(2)(b), approached PO Becker and PO Becker allegedly frisked § 87(2)(b) (**Allegation C: Abuse of Authority**—§ 87(2)(g)). PO Ritell asked § 87(2)(b) to step out of the vehicle then patted the outside of his pockets and allegedly reached inside his pockets (**Allegations D and E: Abuse of Authority**—§ 87(2)(g)) and § 87(2)(g). PO Becker asked § 87(2)(b) to step out of the vehicle then patted the outside of and reached inside of his pockets (**Allegations F and G: Abuse of Authority**—§ 87(2)(g)). PO Becker then searched the vehicle (**Allegation H: Abuse of Authority**—§ 87(2)(g)).

§ 87(2)(b) provided the investigation with video footage of this incident, which he took on his cell phone (See BR 1 for the entire video).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jacqueline Becker stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Vincent Ritell stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g)

§ 87(2)(b) testified that, while seated in his own vehicle, he observed a female he knew only as § 87(2)(b) in the driver's seat of her vehicle, which he described as a white BMW sedan. § 87(2)(b) testified that there were also two teenage individuals in the vehicle with § 87(2)(b) however he did not know either of their names. The investigation identified these two males as § 87(2)(b) and § 87(2)(b). § 87(2)(b) believed the teenagers were § 87(2)(b)'s children. § 87(2)(b) observed the vehicle pull away from where it had been parked, across Morris Avenue from him. § 87(2)(b) remained in his parked position and approximately two minutes later observed § 87(2)(b)'s vehicle pull in front of his followed by an unmarked black police vehicle. PO Becker and PO Ritell exited from the police vehicle and approached § 87(2)(b)'s vehicle. PO Becker approached the passenger's side while PO Ritell approached the driver's side (BR 02).

Both PO Becker and PO Ritell testified that while travelling on Morris Avenue in the Bronx, they observed a vehicle make an illegal U-turn directly in front of them in the vicinity of the intersection of Morris Avenue and McClellan Street in the Bronx. Neither officer observed any other moving violations or any issues with the vehicle itself. Both testified that they stopped the vehicle to address the illegal U-turn and for no other reason. They also both testified that at the conclusion of the stop, they warned and admonished § 87(2)(b) and § 87(2)(b) rather than issue

a summons. Both testified that this decision was made based on their discretion because the individuals were compliant during the incident itself (BR 03, 04).

NYC Traffic Rules 4-05 states that the operator of a motor vehicle shall not make a U-turn upon any street in a business district (BR 05).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation (C) Abuse of Authority: Police Officer Jacqueline Becker frisked Unknown

§ 87(2)(b)
§ 87(2)(b) alleged that he observed PO Becker frisk § 87(2)(b)

§ 87(2)(b) testified that almost immediately after the officers approached the vehicle, § 87(2)(b) stepped out of the driver's door. She walked to the passenger side of the vehicle where PO Becker was. PO Becker then patted the outside of § 87(2)(b)'s clothing. § 87(2)(b) then went to stand on the sidewalk (BR 02).



201709192 Clip 1.mp4

Video footage, which § 87(2)(b) provided to the investigation, depicts an individual, identified by the investigation as § 87(2)(b) approach PO Ritell on the driver's side of the vehicle. The officers appear to tell the § 87(2)(b) to go around to the passenger side where she briefly speaks to PO Becker. PO Becker then motions towards the sidewalk and § 87(2)(b) walks off screen in that direction. At no point does PO Becker frisk or make any physical contact with § 87(2)(b) (BR 06).

PO Becker testified that while the stop was going on, § 87(2)(b)'s mother, identified by the investigation as § 87(2)(b) approached the driver's side of the vehicle. She had not been on scene prior and was never inside of the vehicle. The officers told § 87(2)(b) to go to the passenger side where PO Becker briefly explained what was going on and why they had stopped the vehicle. PO Becker then told § 87(2)(b) to stand on the sidewalk. § 87(2)(b) remained on the sidewalk for the remainder of the stop, however PO Becker had to instruct her to stay on the sidewalk multiple times. PO Becker denied frisking § 87(2)(b) (BR 03).

PO Ritell testified that at some point during the incident, § 87(2)(b) approached the rear of the vehicle. She had not been on scene prior and was never inside of the vehicle. PO Ritell instructed her to go stand on the sidewalk which she complied with. § 87(2)(b) walked back towards the vehicle multiple times and each time either PO Ritell or PO Becker told her to stay on the sidewalk. Each time she was instructed to stay on the sidewalk she complied. PO Ritell

testified that both he and PO Becker interacted with § 87(2)(b) PO Ritell denied that PO Becker frisked § 87(2)(b) (BR 04).

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Vincent Ritell frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Vincent Ritell searched § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Jacqueline Becker frisked § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Jacqueline Becker searched § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Jacqueline Becker searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Ritell frisked § 87(2)(b) and that PO Becker frisked and searched § 87(2)(b) § 87(2)(g)

It is also undisputed that PO Becker searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g)

§ 87(2)(b) initially testified that § 87(2)(b) exited from the passenger side of the vehicle. PO Becker patted the outside of § 87(2)(b)'s pockets then reached inside each one. § 87(2)(b) did not see PO Becker remove anything from § 87(2)(b)'s pockets. § 87(2)(b) testified that § 87(2)(b) exited from the passenger side, however § 87(2)(b) could not recall if he exited the front or rear passenger door. PO Becker patted the outside of § 87(2)(b) pockets before reaching inside of each one. § 87(2)(b) did not see PO Becker pull anything out of § 87(2)(b) pockets. § 87(2)(b) then went to stand behind the vehicle with PO Ritell. § 87(2)(b) testified that his windows were up on his vehicle for the entirety of the incident. Upon viewing the video footage, showing that one of the individuals exited from the driver's side of the vehicle and was frisked by PO Ritell, § 87(2)(b) testified that he was no longer sure if PO Becker frisked and searched both males or only the one. § 87(2)(b) testified that PO Becker then entered the vehicle on the passenger side. § 87(2)(b) couldn't tell if she entered through the front or rear passenger door. PO Becker remained inside the vehicle for approximately two minutes. § 87(2)(b) could not tell specifically where in the vehicle she was looking. PO Becker exited the vehicle, went around to the driver's side, and reentered the vehicle. PO Becker was inside the driver's side of the vehicle for approximately two to three minutes. § 87(2)(b) did not see PO Becker have anything in her hands when she exited the vehicle. PO Ritell remained at the rear of the vehicle with § 87(2)(b) and § 87(2)(b) (BR 02).



201709192 Clip 2.mp4



201709192 Clip 3.mp4



201709192 Clip 4.mp4

In Clip 3 above, § 87(2)(b) exits the driver's side of the vehicle, turns, and places his hands on the roof of the vehicle. PO Ritell then appears to pat the outside of § 87(2)(b)'s waist area. The video then moves away from PO Ritell so it is unclear whether or not he frisks anywhere else on § 87(2)(b)'s person or if he reaches into any of § 87(2)(b)'s pockets (BR 07). In Clip 2 above, § 87(2)(b) exits the passenger side of the vehicle and turns to face the vehicle. PO Becker then frisks § 87(2)(b)'s legs and reaches inside his right pants pocket. PO Becker pulls her hand out and then reaches into the same pocket again (BR 08). In Clip 4, PO Becker enters the vehicle from the passenger side. After exiting, PO Becker went to the driver's side of the vehicle and entered it again (BR 09).

PO Ritell testified that after approaching the driver's door of the vehicle, and asking § 87(2)(b) for his license, registration, and insurance, he smelled a strong odor of marijuana coming from the vehicle. He could not tell if the smell was of was smoked or unsmoked marijuana. PO Ritell also couldn't tell where in the vehicle the smell was coming from. PO Ritell couldn't recall if he said anything to § 87(2)(b) in regards to the smell of marijuana. PO Ritell asked § 87(2)(b) to step out of the vehicle, which § 87(2)(b) did. PO Ritell couldn't recall if he told § 87(2)(b) why he wanted him to step out of the vehicle. Once § 87(2)(b) stepped out, PO Ritell turned § 87(2)(b) around to face the vehicle and frisked § 87(2)(b)'s waist area. PO Ritell couldn't recall if he frisked both the front and back of § 87(2)(b)'s waist. He also couldn't recall if he frisked anywhere else on § 87(2)(b)'s person. PO Ritell did not feel anything while frisking § 87(2)(b). PO Ritell testified that he frisked § 87(2)(b) for his own safety because he knew he was going to be standing in the rear of the vehicle with § 87(2)(b) and wanted to make sure he did not have any weapons. PO Ritell testified that, while he believed it was possible that § 87(2)(b) possessed a weapon, he did not observe anything that led him to believe that § 87(2)(b) was armed. Nor did he observe any bulges on § 87(2)(b)'s person. PO Ritell testified that PO Becker asked § 87(2)(b) to step out of the vehicle which he complied with. PO Ritell could not hear what was said between PO Becker and § 87(2)(b) prior to him stepping out of the vehicle. PO Ritell did not know if PO Becker frisked or searched § 87(2)(b) as he could not see their interaction. PO Ritell testified that once both individuals were out of the vehicle, PO Becker conducted a search of the vehicle. He did not know what specific areas she searched. He did not believe anything was recovered (BR 04).

PO Becker testified that immediately upon approaching the vehicle, she smelled a strong odor of marijuana. She smelled both smoked and unsmoked marijuana. The smell was coming specifically from the vehicle but she could not tell from what specific area of the vehicle. PO Becker did not communicate her observation to her partner. PO Becker told § 87(2)(b) who was seated in the passenger seat, that it smelled like marijuana in the vehicle. § 87(2)(b) stated that they had just smoked marijuana. PO Becker asked § 87(2)(b) to step out of the vehicle which he did. PO Becker asked § 87(2)(b) if he had any marijuana on him and § 87(2)(b) stated that he might while pointing down towards his pants. § 87(2)(b) then told PO Becker that she could check him. PO Becker did not ask if she could frisk or search him prior to § 87(2)(b) stating that she could check him. PO Becker testified that she reached into one of § 87(2)(b)'s pockets; however she could not recall which one. From that pocket she removed a clear zip lock bag that

contained what she determined to be only tobacco. She determined this base on its color and smell. PO Becker couldn't recall if she reached into only one pocket or multiple. PO Becker also couldn't recall if she frisked § 87(2)(b) prior to reaching inside his pockets. PO Becker testified that she reached inside his pockets because he indicated that he might have additional marijuana on him and she was checking for that. PO Becker testified that PO Ritell asked § 87(2)(b) out of the vehicle but she did not see if he frisked or searched § 87(2)(b). After both individuals were out of the vehicle, PO Becker conducted a search of the vehicle. PO Becker testified that she searched the vehicle because she wanted to see if there was any marijuana in plain view. She believed there might have been marijuana in the vehicle based on the § 87(2)(b) statements detailed above as well as the continued smell of marijuana. PO Becker couldn't recall specifically where she looked or if she opened any compartments inside the vehicle. Nothing was recovered during the search (BR 03).

"The smell of marijuana smoke, with nothing else, can be sufficient to provide the police officers with probable cause to search an automobile and its occupants." People v. Chestnut, 43 A.D.2d 260 (BR 10).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g), § 87(4-b)
[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint that § 87(2)(b) has been party to (BR 14). § 87(2)(g)
[REDACTED]

- § 87(2)(g)
- § 87(2)(b) has been part to three prior CCRB complaints and has been named as a victim in nine allegations (BR 12):
 - § 87(2)(b)
 -
 -
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 - PO Ritell has been a member of service for four years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
 - PO Becker has been a member of service for two years and has been the subject in one CCRB complaint and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request was filed with the New York City Office of the Comptroller in regards to Notices of Claim for this incident. When the results of that inquiry are received, they will be added to the case file.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator: _____	_____	_____
Signature	Print Title & Name	Date

Squad Leader: _____	_____	_____
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
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Signature

Print Title & Name

Date